

**CHAPTER xvii.**

An Act for incorporating and conferring powers on the A.D. 1905.
Epping Gas Company and for other purposes.

[30th June 1905.]

WHEREAS in the year one thousand eight hundred and sixty-two certain persons formed themselves into a gas company under the name of the Epping Gas Company Limited (in this Act referred to as "the Limited Company") for the purpose of the supply and sale of gas coke and tar and other refuse produce arising from the making of gas for public and private use and consumption within the parishes of Epping Theydon Garnon and Theydon Bois in the county of Essex some or one of them and elsewhere and such company was duly registered in accordance with the provisions of the Joint Stock Companies Acts 1856-1857:

And whereas the share capital of the Limited Company consists of ten thousand pounds divided into one thousand shares of ten pounds each all of which have been created and issued and are fully paid up:

And whereas the Limited Company have not borrowed any money on the security of their undertaking:

And whereas the Limited Company have acquired the land described in the Second Schedule to this Act and have erected gasworks thereon and are now supplying gas in the parish of Epping and parishes adjacent thereto in the county of Essex:

And whereas it is expedient that the Limited Company should be dissolved and re-incorporated with further powers and that the limits of supply of the Company should be defined:

And whereas the demand for gas in the district supplied by the Limited Company has increased and is increasing and it is expedient that the Company incorporated by this Act should be

A.D. 1905. empowered to improve and extend their works and to erect further gasworks and other buildings and that for such purposes and other the purposes of this Act the Company should be authorised to raise additional capital as by this Act provided :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited as the Epping Gas Act 1905.

Incorporation of Acts.

2. The following Acts and parts of Acts are hereby incorporated with this Act (namely) :—

The Companies Clauses Consolidation Act 1845 (except the provisions relating to the conversion of borrowed money into capital) :

Part I. (relating to cancellation and surrender of shares)
Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts :

The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) :

The Gasworks Clauses Act 1847 (except sections 30 to 34) and the Gasworks Clauses Act 1871 Provided that section 13 of the former Act shall be read as if the words "or any premises" were inserted after the words "private building."

Interpretation.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction :

The expression "the Company" shall mean the Epping Gas Company incorporated by this Act ;

The expressions "the works" "the gasworks" and "the undertaking" shall respectively mean and include the gasworks and works connected therewith by this Act vested in

or authorised to be made or maintained by the Company and any improvement thereof which they may effect under the powers of this Act and the lands buildings estate right title property privileges and effects and the undertaking of the Company and every part thereof respectively. A.D. 1905. —

4. The limits of this Act shall be an area comprising the parishes of Epping Epping Upland Havering-atte-Bower Nazeing Stapleford Abbots Stapleford Tawney Theydon Bois Theydon Garnon Theydon Mount and part of the parish of North Weald Bassett all in the county of Essex such area being more particularly described in the First Schedule to this Act. Limits of Act.

5. From and after the passing of this Act the Limited Company shall be dissolved and the several persons who immediately before the passing of this Act were members of that company and all other persons who have subscribed to or who shall hereafter become proprietors in the undertaking of the Company and their executors administrators successors and assigns respectively shall be and they are hereby united into a company for the purposes hereinafter mentioned and shall be incorporated by the name of "The Epping Gas Company" and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act. Dissolution and re-incorporation of Limited Company.

6. The Company shall be established for the purpose of manufacturing and supplying gas for lighting heating motive power and other purposes within the limits of this Act and may provide produce sell dispose of and deal in gas coke tar and all other residual products resulting from the manufacture of gas and generally may carry on the business usually carried on by a gas company. General purposes of Company.

7. Subject to the provisions of this Act all the lands gas-works erections buildings rights and easements which immediately before the passing of this Act were vested in the Limited Company or any person in trust for them or to which the Limited Company were in anywise entitled and all mains and pipes plant plugs lamps irons retorts gauges meters gas stoves fires cookers gas fittings lamp-posts syphons apparatus stock effects matters and things which have been by them purchased provided laid down erected or placed in any place or house within the limits of this Act or which immediately before the passing of this Act were the property of the Limited Company and all moneys securities credits Present property of Limited Company vested in Company.

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effects and other property whatsoever which immediately before the passing of this Act belonged to the Limited Company or to any trustee on their behalf and the benefit of all contracts and engagements entered into by or on behalf of the Limited Company and immediately before the passing of this Act in force shall be and the same are hereby vested in the Company to the same extent and for the same estate and interest as the same were previously to the passing of this Act vested in the Limited Company or any trustee on their behalf and may according to the provisions of this Act be held and enjoyed sued for and recovered maintained altered discontinued removed dealt with and disposed of by the Company as they think fit.

Memorandum and articles of association of Limited Company to be void without prejudice to remedies for antecedent breaches thereof.

8. Subject to the provisions of this Act the memorandum and articles of association of the Limited Company shall as to any prospective operation thereof be wholly void and the Company and the shareholders shall be exempted from all the provisions restrictions and requirements of any Act which applied to the Limited Company and the members thereof as such. But nothing in this Act contained shall release or discharge any person from any liability or obligation in respect of any breach of the provisions of the said memorandum and articles of association incurred before the passing of this Act but such liability or obligation in respect of any such breach shall continue and save as in this Act otherwise provided may be enforced by or on behalf of the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the Limited Company if this Act had not been passed.

Nothing to affect previous rights and liabilities.

9. Except as is by this Act otherwise expressly provided everything before the passing of this Act done or suffered by or with reference to the Limited Company or the members thereof as such shall be as valid as if the Company had not been incorporated and the said memorandum and articles of association had not been avoided by this Act and such incorporation and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered and to all rights liabilities claims and demands both present and future which if the Company were not incorporated and the said memorandum and articles of association were not avoided by this Act and this Act were not passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and their shareholders and property shall to all intents

and purposes represent the Limited Company and the members thereof as such as the property of the Limited Company as the case may be and the generality of this enactment shall not be restricted by any of the other clauses and provisions of this Act.

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10. Except as is by this Act otherwise especially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the passing of this Act by to or with the Limited Company or any trustees or persons acting on behalf of the Limited Company or by to or with any other person to whose rights and liabilities they have succeeded and now in force shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if instead of the Limited Company or the trustees or persons acting on behalf of the Limited Company the Company had been a party thereto.

Contracts
prior to Act
to be binding.

11. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or against the Limited Company or any member thereof in relation to the affairs of the Limited Company or to which the Limited Company or any member thereof in relation to such affairs were parties immediately before the passing of this Act but such action suit or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the Limited Company or any member thereof if this Act had not been passed the Company and the shareholders therein being in reference to the matters aforesaid in all respects substituted for the Limited Company and their members respectively.

Actions &c.
not to abate.

12. Every trustee or other person in whom or in whose name any lands works buildings easements rights property or effects belonging to the Limited Company were vested immediately before the passing of this Act and who (being authorised so to do) entered into any bond covenant contract or engagement in respect of the same or otherwise on behalf of the Limited Company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he may sustain or incur or be put unto by reason of his having entered into any such bond covenant contract or engagement.

Trustees of
Limited
Company to
be indemni-
fied.

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Company to
satisfy lia-
bilities of
Limited
Company.

13. From and after the passing of this Act and except as is by this Act otherwise expressly provided the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the Limited Company immediately before the passing of this Act were subject and shall indemnify the members directors officers and servants of the Limited Company and their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf.

Recovery of
gas rents &c.

14. All gas rents and sums of money which immediately before the passing of this Act were due or accruing to the Limited Company shall be payable to and may be collected and recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act.

As to pay-
ment of debts
owing before
passing of
Act.

15. All persons who immediately before the passing of this Act owed any money to the Limited Company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the passing of this Act were due or recoverable from the Limited Company or for the payment of which the Limited Company were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company.

Certificates
&c. to remain
in force.

16. Notwithstanding the avoidance of the said memorandum and articles of association all certificates (until cancelled under the powers of this Act) sales transfers and dispositions heretofore made or executed under them for and with respect to any shares in the Limited Company shall remain in full force and continue and be available in all respects as if they had not been avoided.

Books &c.
continued
evidence.

17. All documents books and writings which if the said dissolution and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all courts and elsewhere notwithstanding such dissolution and avoidance.

Officers to
continue until
removed.

18. All officers and servants of the Limited Company who were in office immediately before the passing of this Act shall hold and enjoy their respective offices and employments together with the salaries and emoluments thereunto annexed until they shall resign the same or be removed therefrom by the Company and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act.

19. The books kept by the Limited Company for entering the names and designations of the members thereof with the numbers of their shares and the proper distinguishing number of each share shall until some other register of shareholders shall be provided by the Company continue to be kept for the same purpose by the Company and be taken and considered as the register of shareholders required to be kept by the Companies Clauses Consolidation Act 1845.

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Present
registers of
members to
be continued.

20. The capital of the Company shall be forty thousand pounds whereof twenty thousand pounds is in this Act called "the original capital" and twenty thousand pounds is in this Act called "the additional capital" and shall be raised in manner hereinafter mentioned and the Company may convert into stock the whole or any part of their original or additional capital when fully paid up.

Capital.

21.—(1) The shares in the original capital shall be divided among and vested in the several persons who immediately before the passing of this Act were the registered members of the Limited Company in substitution for the existing shares of the Limited Company (that is to say) two shares for every old share.

Vesting of
old shares in
present
shareholders.

(2) Every share so vested shall be subject and liable to the same trusts powers provisions declarations agreements charges liens and incumbrances as immediately before the passing of this Act affected the shares for which the same is substituted and every deed or other instrument or any testamentary or other disposition of the old shares shall take effect with reference to the shares substituted therefor.

22. The Company shall call in and cancel the existing certificates of shares in the Limited Company and issue in lieu thereof certificates under the conditions prescribed by the Companies Clauses Consolidation Act 1845 but the holders of such existing certificates of shares shall not be entitled to any certificates of proprietorship under this Act until they shall have delivered up to the Company to be cancelled the certificates of proprietorship issued to them before the passing of this Act or shall have proved to the reasonable satisfaction of the Company the loss or destruction thereof.

Company
shall call in
and cancel
existing share
certificates
and issue new
certificates in
lieu thereof.

23. The Company may from time to time raise additional capital not exceeding in the whole twenty thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more

Power to
Company to
raise addi-
tional
capital.

A.D. 1905. — of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds nor shall any such share or stock vest in the person or corporation accepting the same unless and until the full price of such share or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of twenty thousand pounds. Provided also that not more than one half of such additional capital shall be issued as preference capital.

Profits of
Company
limited.

24. Except as by this Act provided the profits of the Company to be divided among the shareholders in any year shall not exceed the following rates (which are in this Act referred to as "the standard rates of dividend") (that is to say):—

On the original capital the rate of five pounds in respect of every one hundred pounds of such capital; and

On the additional capital to be raised under the powers of this Act the rate of five pounds in respect of every one hundred pounds actually paid up of such capital whether the same be issued as ordinary or as preference capital.

New shares
or stock in
additional
capital to be
offered by
auction or
tender.

25. Notwithstanding anything in this Act contained the Company shall when any shares or stock in the additional capital created under the powers of this Act are to be issued and before offering the same to the holder of any other shares or stock in the Company and whether the ordinary shares or ordinary stock of the Company are or is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal amount thereof and notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of shares or stock in the Company.

26. It shall be one of the conditions of any sale of shares or stock portion of the additional capital under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

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Purchase
money of
capital sold by
auction to be
paid within
three months.

27. The intention to sell any such shares or stock by auction or by tender shall be communicated in writing to the clerk of every district council whose district or any part of whose district is within the limits of the Company for the supply of gas and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders (as the case may be) and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of this Act.

Notice to be
given as to
sale of shares
or stock by
auction.

28. When any shares or stock portion of the additional capital created under the powers of this Act have been offered for sale by auction or tender and not sold the same may be disposed of by the directors at a price not less than the reserved price put upon the same for the purpose of sale by auction or tender or may be offered at such reserved price to the holders of ordinary shares or ordinary stock of the Company in manner provided by the Companies Clauses Act 1863 Provided always that any shares or stock not so disposed of or so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of shares or stock created under the powers of this Act except that the reserved price put upon such shares or stock may upon such second sale if the directors of the Company think fit be less than the nominal amount thereof and any shares or stock not then sold may be disposed of by the directors or offered to the holders of ordinary shares or ordinary stock at not less than the last-mentioned reserved price and so from time to time until the whole of such shares or stock is sold.

Disposal of
shares or
stock not sold
by auction or
tender.

29. Any sum of money which shall arise from the issue of any such shares or stock portion of the additional capital by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend Provided that in any case where

Application
of premium
arising on
issue of shares
or stock.

A.D. 1905. — a power to raise money by borrowing or to create an insurance fund is made proportionate to the paid-up capital the premium received from the sale of shares or stock by auction or tender as hereinbefore provided shall for such purpose be reckoned as part of the paid-up capital.

If profits exceed amount limited excess may be invested and form an insurance fund.

30. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital (if any) and dividend on the ordinary capital of the Company at the authorised rates the excess beyond the sum necessary for that purpose may from time to time to the extent of one per centum per annum upon the paid-up capital of the Company be invested in Government or other securities and the dividends and interest arising from such securities shall also be invested in the same or the like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one twentieth of the paid-up capital of the Company which sum shall form an insurance fund to meet any extraordinary claim demand or charge which may at any time arise against or fall upon the Company from accident strikes or other circumstances which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said sum and so from time to time as often as such reduction shall happen. Provided that when and so often as the said fund shall reach one twentieth part of the paid-up capital the interest thereon shall be carried to the credit of the fund available for dividend. Provided also that resort may from time to time be had to the insurance fund to meet any extraordinary claim demand or charge as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one twentieth as aforesaid.

Application of excess of profits over authorised rates of dividend.

31. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital (if any) of the Company and the dividend at the authorised rates on the ordinary capital of the Company the excess or such portion of it as is not carried to the insurance fund shall be carried to the credit of the divisible profits of such undertaking for the next following year.

Power to create a reserve fund out of dividends in

32. Where in any year the dividend of the Company on the ordinary capital of the Company shall exceed the standard rates by reason of the price charged by the Company for gas in such year

being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and any reserve or other fund of the Company existing at the passing of this Act may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividend at the authorised rates on the ordinary capital of the Company and save as is in this Act provided no sum shall in any year be carried by the Company to any reserve fund.

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excess of
standard
rates of divi-
dend and
application
thereof.

33. The Company may borrow on mortgage of their undertaking in respect of the original capital any sum not exceeding in the whole three thousand three hundred and thirty-three pounds.

Power to
borrow in re-
spect of origi-
nal capital.

34. In addition to the money which the Company are authorised to borrow by the last preceding section they may borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the additional capital by this Act authorised to be raised and at the time actually issued by shares or stock but no part thereof shall be borrowed until the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 (before he so certifies) that such shares or stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Power to
borrow in
respect of
additional
capital.

35. The mortgagees of the undertaking may enforce payment of arrears of interest or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one tenth of the amount for the time being owing by the Company on mortgage.

For appoint-
ment of a
receiver.

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Debenture
stock.

36. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Priority of
mortgages
and debenture
stock
over other
debts &c.

37. All moneys raised on mortgage by the Company under this Act and all moneys continued on mortgage of the undertaking and the interest due thereon and the interest due on debenture stock created and issued under this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of debts incurred or engagements entered into by the Company after the passing of this Act but this priority shall not affect any claim against the Company or their property in respect of any rentcharge to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company by any person in pursuance of any Act relating to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividend on their mortgages or debenture stock.

Limit of in-
terest on
borrowed
money.

38. The Company shall not without the consent of the Board of Trade pay interest at a higher rate than five pounds per centum per annum in respect of any moneys raised by the creation and issue of debenture stock under the authority of this Act.

Application
of moneys.

39. All moneys raised under this Act whether by shares stock debenture stock or borrowing shall be applied only for the purposes of this Act to which capital is properly applicable.

First and
subsequent
ordinary
meetings.

40. The first ordinary meeting of the Company after the passing of this Act shall be held in the month of February one thousand nine hundred and six and the subsequent ordinary meetings of the Company shall be held in the month of February in every year or at such other time as shall be appointed for that purpose by an order of a general meeting of the Company.

41. The number of directors shall be five but the Company may vary the number provided that the number be not at any time more than five nor less than three. A.D. 1905.
Number of
directors.

42. The qualification of a director shall be the possession in his own right of shares or stock of the nominal amount of not less than two hundred and fifty pounds. Provided that any director holding office at the date of the passing of this Act shall be deemed to be duly qualified and shall be eligible for re-election if he possess in his own right shares or stock of the nominal amount of not less than fifty pounds. Qualification
of directors.

43. The quorum of a meeting of directors shall be three. Quorum.

44. Francis George Hart Swaine William Chisenhale Marsh George Brown William Wade Nicholls and Frederick William Dearlove shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act. At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act being if they continue qualified eligible for re-election and at the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in manner provided by the same Act. First and
subsequent
directors.

45. The auditors need not hold shares or stock in the Company. Auditors.

46. The directors may in any year without calling a meeting of shareholders for the purpose declare an interim half-yearly dividend out of the profits of the Company. Provided that the amount of any interim half-yearly dividend so declared shall not exceed in any one half-year one half of the amount of the standard dividend. Interim
dividend.

47. It shall be lawful for the directors to close the register of transfers for a period not exceeding fourteen days previous to the declaration of any interim dividend and they may fix a day Closing of
transfer
books pre-
vious to

A.D. 1905. for closing the same of which seven days' notice shall be given
 declaring in- by advertisement in some newspaper published or circulating in
 terim divi- the district within which the principal office of the Company is
 dend. situate and any transfer made during the time when the transfer
 books are so closed shall as between the Company and the party
 claiming under the same but not otherwise be considered as made
 subsequently to the declaration of any such dividend.

Books to be
 balanced to
 31st Decem-
 ber.

48. The period to which the books of the Company shall be
 balanced shall be the thirty-first day of December in each year.

Powers as to
 construction
 and mainte-
 nance of gas-
 works &c.

49. Subject to the provisions of this Act the Company may
 upon the land described in the Second Schedule to this Act
 maintain alter improve enlarge extend and renew or discontinue
 their existing gasworks and manufactories and they may also upon
 such land erect lay down provide and maintain alter improve
 enlarge extend and renew or discontinue with all necessary roads
 approaches sidings and conveniences additional and other gasworks
 retorts gasometers manufactories condensers scrubbers exhausters
 purifiers gas-holders sulphate plant tanks receivers drains sewers
 mains pipes meters gas stoves fires and cookers gas fittings lamps
 lamp-posts burners stop-cocks machinery and other works and
 apparatus and conveniences and may do all such acts as they may
 think proper for making and storing gas and for supplying gas
 within the limits of this Act and may make store and supply gas
 accordingly and may manufacture sell provide supply and deal in
 coke tar and all other products or residuum of any materials
 employed in or resulting from the manufacture of gas.

For protec-
 tion of Great
 Eastern
 Railway
 Company.

50. The following provisions for the protection of the
 Great Eastern Railway Company (hereinafter called "the railway
 company") shall unless otherwise agreed in writing between the
 Company and the railway company under their respective common
 seals be in force and have effect and be binding on the Company:—

In laying down and executing or in effecting the repairs and
 renewals of any mains pipes or other works which the Com-
 pany may be authorised to lay down and execute upon across
 over under or in any way affecting the railways lands or
 property now or hereafter belonging to or used or occupied
 by the railway company or the bridges approaches viaducts
 stations or other works or any level crossings of or repairable
 or used by the railway company the same shall be done
 under the superintendence and to the reasonable satisfaction
 of the principal engineer of the railway company and only
 according to plans and sections to be submitted to and in

such manner as shall previously be reasonably approved by him and in all things by and at the expense of the Company who shall also restore and make good the roads over any such bridges level crossings and approaches which the railway company is or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Company and all such works matters and things shall be constructed executed and done so as not to cause any injury to such railways bridges level crossings approaches viaducts stations works lands or property or interruption to the passage or conduct of the traffic over such railways or at any station thereon and if any injury or interruption shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such mains pipes or works under or near to any such bridge level crossing or other property the Company shall make compensation in respect thereof to the railway company the amount of such compensation unless otherwise agreed upon to be determined by arbitration in the manner hereinafter provided Any dispute or difference which may arise between the Company and the railway company with reference to the provisions of this section or in any way arising thereout shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the railway company and the Company or either of them.

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51. The Company may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) in addition to the land described in the Second Schedule to this Act any lands and hereditaments not exceeding in the whole five acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the land described in the Second Schedule to this Act.

Power to
purchase
lands by
agreement.

52.—(1) The Company may sell let for hire or otherwise deal in fix repair and remove but shall not manufacture meters engines stoves ranges pipes burners and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect

Power to
supply gas
fittings &c.
for heating
and other
purposes.
Fittings not
to be subject
to distress.

§A.D. 1905. thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the fittings are sold let fixed up repaired or removed.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

Dividend
dependent
on price
charged.

53. From and after the thirty-first day of December one thousand nine hundred and five the standard prices to be charged by the Company for gas supplied by them to persons who shall burn the same by meter shall be four shillings and threepence per one thousand cubic feet for gas supplied within a radius of three miles from the existing gasworks of the Company and four shillings and sixpence per one thousand cubic feet supplied by them beyond such radius:

Provided that the Company may increase or reduce the price charged by them for gas in the said portions of the limits of supply respectively above or below the said standard prices subject to a reduction or increase in the standard rate of dividend as follows:—

In respect of any half-year during any part of which the prices charged by the Company for gas shall have been one penny or part of a penny above the standard prices respectively the dividend payable by the Company for that half-year shall in respect of each penny or part of a penny by which the standard prices shall have been increased be reduced below the standard rate of dividend by one shilling and threepence upon every one hundred pounds of ordinary paid-up capital but such reduction shall be calculated only upon whichever of the said prices shall have been increased to the greater extent:

In respect of any half-year during the whole of which the prices charged by the Company for gas shall have been one penny or more below the standard prices respectively the dividend payable by the Company for that half-year may in respect of each penny by which the standard prices shall

have been reduced be increased above the standard rate of dividend by one shilling and threepence upon every one hundred pounds of ordinary paid-up capital but such increase shall be calculated only upon whichever of the said prices shall have been reduced to the less extent : A.D. 1905.

Provided that if in any half-year the dividend payable shall comprise a fractional amount less than one quarter per centum the Company may defer the payment of such fractional amount until the payment of the next or some succeeding dividend and shall in the discretion of the Company either add such fractional amount to and pay the same with such succeeding dividend accordingly or add the same to the reserve fund.

54. All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water from midnight to sunset not less than six tenths of an inch and from sunset to midnight not less than eight tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer and any gas examiner appointed under the Gasworks Clauses Act 1871 may subject to the terms of his appointment test the pressure at which the gas is supplied and may for that purpose open any street road passage or place vested in or under the control of any local or road authority and the provisions of the Gasworks Clauses Act 1871 with reference to testing of gas and to penalties shall mutatis mutandis apply to such testing of pressure and two hours' previous notice shall be given to the Company of the time and place at which such testing shall be conducted. Pressure of gas.

55. No penalty shall be incurred by the Company for insufficiency of pressure defect of illuminating power or for excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was caused by an unavoidable cause or accident Provided that the want of sufficient funds shall not be held to be an unavoidable cause. No penalty in case of unavoidable cause.

56. The prescribed number of candles shall not be less than fourteen. Quality of gas.

57. Within six months from the passing of this Act if the same has not already been done a testing place shall be provided at the works of the Company. Testing place.

A.D. 1905.
Burner.

58. The prescribed burner shall be a Sugg's argand burner for testing gas of the illuminating power of fourteen candles or any other burner or chimney approved for this purpose by the Board of Trade.

Company to
pay interest
on money
deposited as
security for
gas meter &c.

59. If any person is required by the Company to give to them security for the payment of the price or rent of a meter the Company shall pay interest after the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of security for every six months during which the same remains in their hands.

Notice of
discontinu-
ance.

60. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

Power to
refuse to
supply per-
sons in debt
for other
property.

61. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas or meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Period of
error in
defective
meters.

62. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company.

As to con-
struction and
placing of
pipes &c.
between
mains and
meters.

63. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises :

- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specification shall be published twice in some newspaper (once in each of two newspapers) circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building. The provisions of this subsection shall not apply to prepayment meters :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company. Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :
- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

64. Twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such

Gas consumers to give notice to Company

A.B. 1905. notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent payable to the Company.

Anti-fluctuators for gas engines.

65. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and in default of his so using or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of the consumer.

Discounts.

66. The Company may if they think fit allow discounts or rebates to consumers of gas in consideration of prompt payment of gas rents not exceeding in any case ten per centum and in addition to or irrespective thereof they may if they think fit allow discounts or rebates to large consumers not exceeding in any case fifteen per centum. Provided that all discounts or rebates shall be of equal amount under like circumstances to all consumers. Provided also that notice of the effect of this enactment shall be endorsed on every demand note for gas rent.

Power to lay pipes in streets not dedicated to public use.

67. The Company may on the application of the owner or occupier of any premises abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and may lay and from time to time take up alter relay or renew in across or along such street or road such pipes as may be requisite or proper for the furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are respectively applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Dwelling-houses for persons in Company's employ.

68. The Company may erect and maintain dwelling-houses for persons in their employ upon the lands for the time being belonging to or leased by the Company.

69. The Company shall forward to the Registrar of Joint Stock Companies a printed copy of this Act and it shall be recorded by him and if such copy is not forwarded within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and every director and manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty and every penalty under this Act shall be recoverable summarily.

A.D. 1905.
—
Copy of Act
to be regis-
tered.

There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

70. All the costs charges and expenses of incident and preliminary to the preparing and applying for obtaining and passing of this Act and otherwise in relation thereto shall be paid by the Company.

Costs of Act.

A.D. 1905.

The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

The parishes of Epping Epping Upland Havering-atte-Bower Nazeing and so much of the parish of North Weald Bassett as lies to the south of an imaginary line drawn in a due north-easterly direction from the smith's shop at the extreme southern boundary of the parish of Latton and joining the parish of Harlow at Shonke's Brook Stapleford Abbots Stapleford Tawney Theydon Bois Theydon Garnon and Theydon Mount all in the county of Essex.

THE SECOND SCHEDULE.

A piece of land numbered 160 on the 25-inch Ordnance map of Essex L 14 published in 1874 situate in the parish of Epping in the county of Essex now belonging to or reputed to belong to the Limited Company and on which the existing gasworks and buildings of the Limited Company are situated and which contains by admeasurement 2 acres or thereabouts bounded on the north by land in the occupation of the Epping Steam Laundry Company on the west by the Great Eastern Railway on the south by land belonging to or reputed to belong to Colonel Houblon and on the east by land occupied by Messrs. Hayden & Sons.

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